

Social & Philosophical Foundations of Education

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Lecture 10: July 23, 2025

Lecture #10: Agenda

- Discuss the Educational Experiences of Immigrant and Undocumented Students

A young woman with dark hair tied back is the central figure, holding a large white banner. The banner has the text 'WE ARE ALL IMMIGRANTS' in bold, black, sans-serif capital letters. She is looking directly at the camera with a serious expression. In the background, a diverse group of people are gathered, some holding signs and others looking towards the camera. The setting appears to be an outdoor urban space with trees and buildings in the distance. A red arrow graphic points from the left edge towards the center of the image.

Immigrant and Undocumented Students

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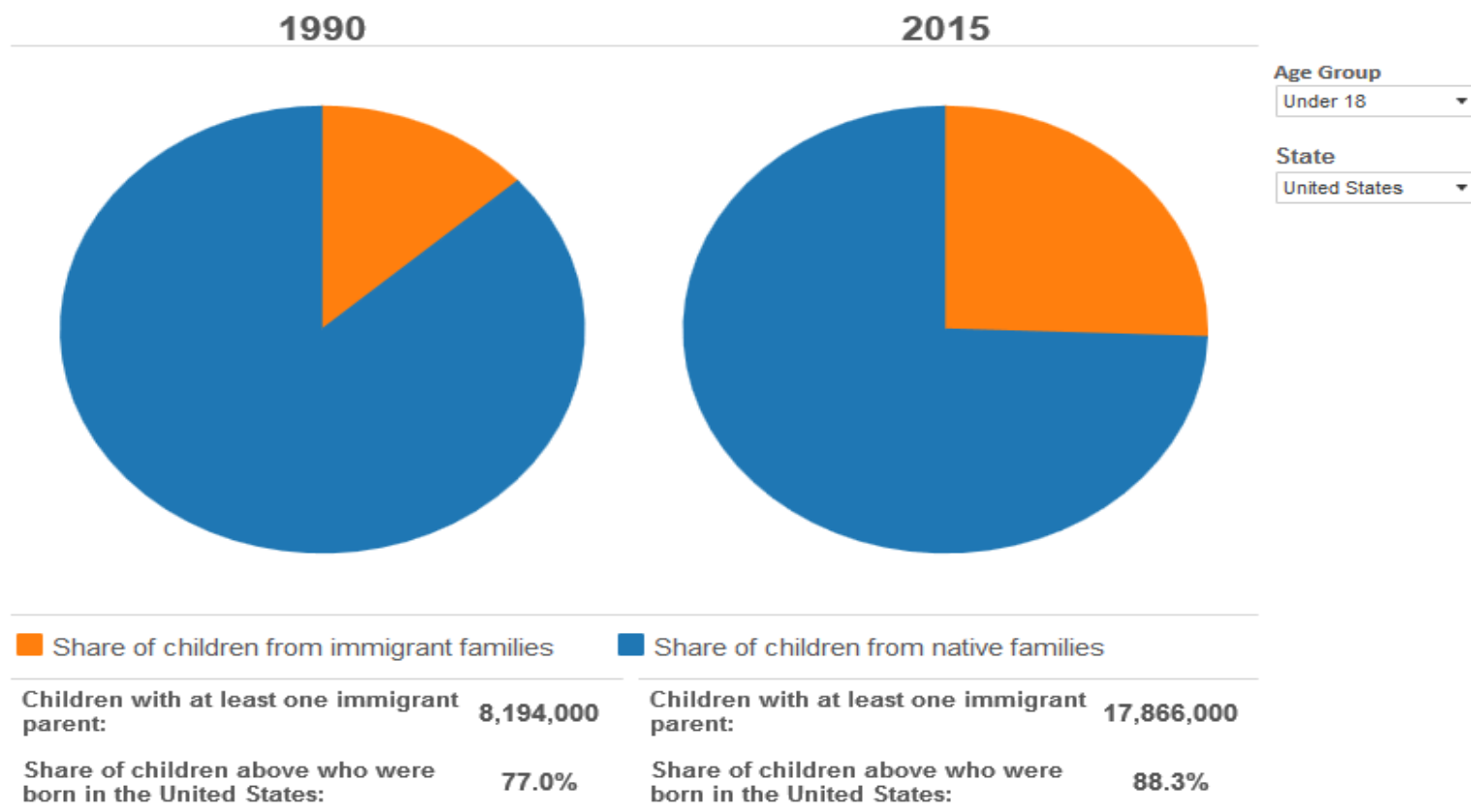
U.S. Children Who Are Immigrants

- Immigrant children are defined here as those who have **at least one foreign-born parent**.
 - **First-generation** immigrant children are those who were born outside the United States.
 - **Second-generation** immigrants are those who were born within the United States or its territories.
- From 1994 to 2017, the percentage of children who are immigrant children, either first- or second- generation, increased by 51 percent, from 18 to 27 percent.

Children in U.S. Immigrant Families

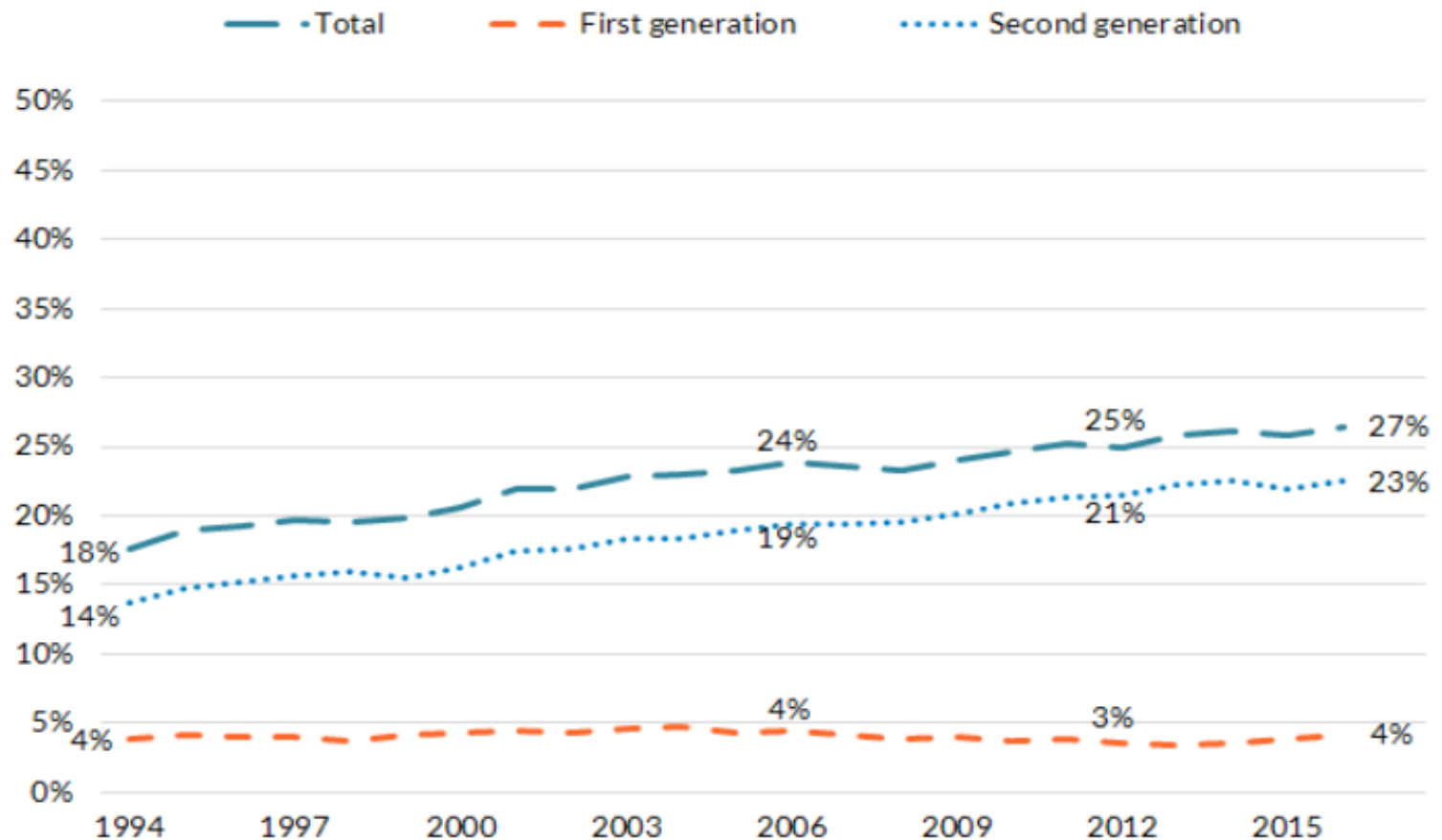
Children in U.S. Immigrant Families:

Number and Share of the Total U.S. Child Population, by Age Group and State



U.S. Children Who Are Immigrants

Percentage of U. S. Children Younger than 18 Who Are Immigrants,* by Generation: 1994-2017



Difference By Generation

- In 1994, there were three-and-a-half times as many second-generation as first-generation immigrant children. By 2017, this difference had grown: **Second-generation children outnumbered first-generation children by nearly six to one.**
- In 1994, 41 percent of second-generation immigrant children had at least one parent who was born in the United States. Overall, the percent of immigrant children who had at least one parent born in the United States has remained consistent from 2007 to 2017, fluctuating between 27 and 29 percent.

Differences by Country of Origin

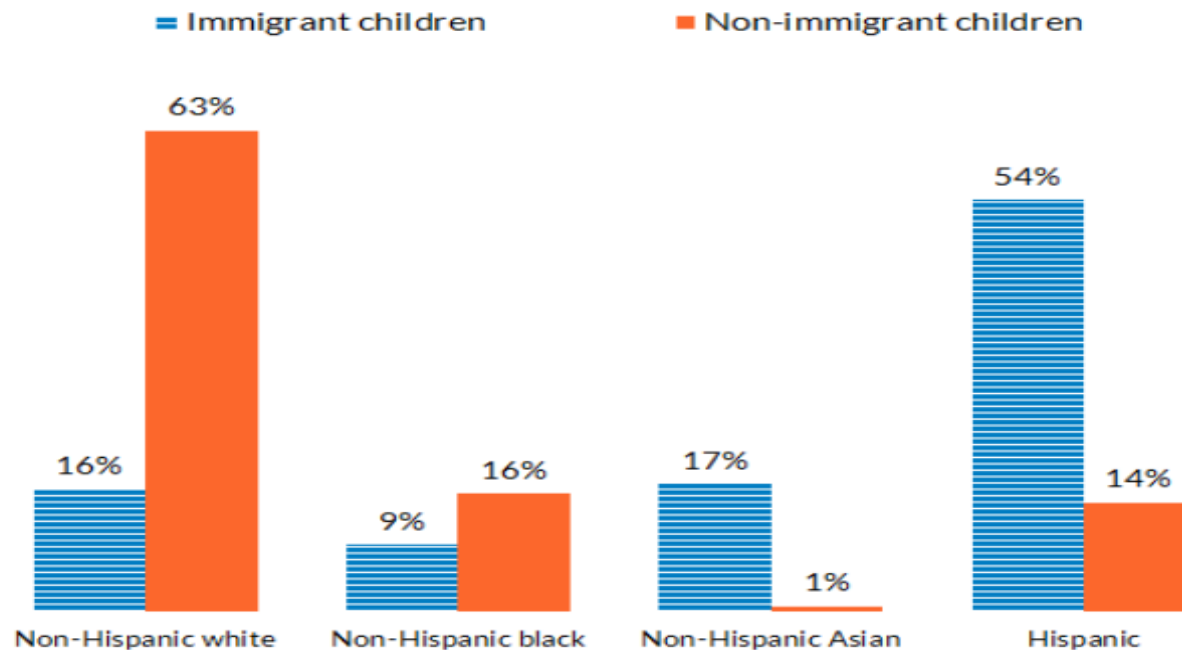
- From 2006 to 2017, **the proportion of first-generation immigrant children who were Mexican-born decreased from 37 to 18 percent, a record low.**
- In 2017, the three next most common birthplaces for first-generation children for countries included in this report were **India (8 percent), China (5 percent), and the Philippines (4 percent).**

Differences by Country of Origin

- ▶ In 1996, **38 percent of second-generation immigrant children had at least one parent who was born in Mexico.** By 2010, this proportion was 46 percent, although it has since decreased to 42 percent in 2017.
- ▶ The three next most common countries of origin for the parents of second-generation immigrant children were **El Salvador (5 percent), India (5 percent), and the Philippines (3 percent).**

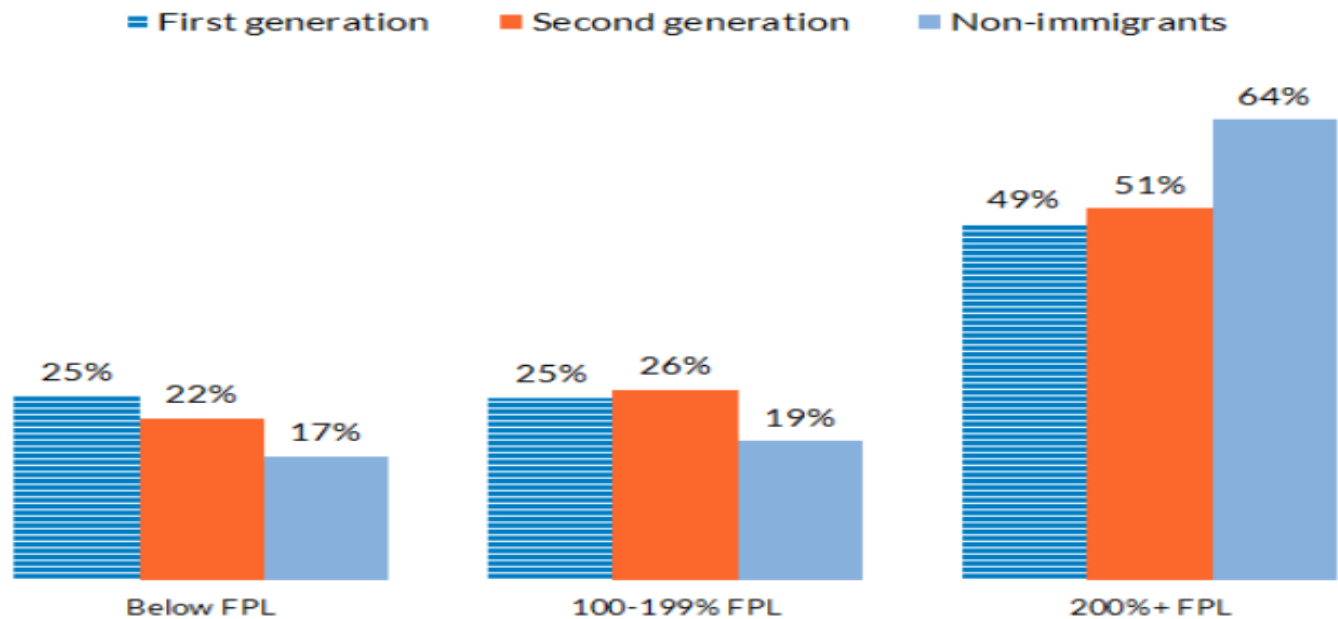
Difference By Race/Ethnicity

Percent of Immigrant* and Non-Immigrant Children Under Age 18, by Race/Hispanic Origin: 2017



Difference By Economic Status

Percent of Immigrant* and Non-Immigrant Children Under Age 18 Living Below the Federal Poverty Level: 2017



The Future of Immigrant Children - Haskins and Tienda

- ➡ Problem: **Poor educational achievement of immigrant youth** (both children brought by their immigrant parents to the U.S. and those born in the U.S.)
- ➡ Nearly a quarter of children in the U.S. are immigrants or the children of immigrants.

The Future of Immigrant Children - Haskins and Tienda

- A substantial percentage of these immigrant children (especially from Mexico and Latin America) are falling behind in school and more than **5 million immigrant children** are struggling with their academic subjects because they are still learning English.

The Future of Immigrant Children - Haskins and Tienda

- Gandara and Contreras conclude that “if the high dropout rates and low educational achievement of Latino youth are not turned around, we will have a permanent underclass without hope of integrating into the mainstream” (Haskins & Tienda, p. 2).

Haskins and Tienda – Policies to Address the Problem

- ➡ Proposed policy reforms are intended to:
 - ➡ Improve **school achievement**.
 - ➡ Improve **life economic well-being** of immigrant children when they become adults.
 - ➡ Increase economic and social contributions to American society of immigrant children.

Haskins and Tienda – Policies to Address the Problem

1. Expanding preschool programs.

- Many mothers of immigrant children have little education and limited English fluency leading to poor school readiness among their children and subsequent academic problems.
- Many immigrant children are not enrolled in preschool due to high poverty rates, low maternal education, the daily presence of one parent in the home, and limited English proficiency of parents leading to difficulty navigating the preschool enrollment process.
- Preschool improves reading and math readiness, but results are mixed.

ADDITIONAL ERGARTEN

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Haskins and Tienda – Policies to Address the Problem

2. Improved instruction in English for school-age English Language Learners.

- A large percentage of teachers have not received specialized training in effective methods to instruct English Learners.
- Many English Learners don't have access to appropriate curriculum.
- The quality of instruction is more important than whether students are taught in bilingual or English immersion.

Haskins and Tienda – Policies to Address the Problem

3. Improve access to post-secondary education.

Undocumented Students in California: What You Should Know

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The Education Trust—West

DEMOGRAPHICS

1 in 13 Californians is undocumented¹

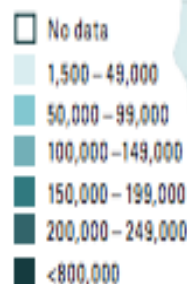


750,000

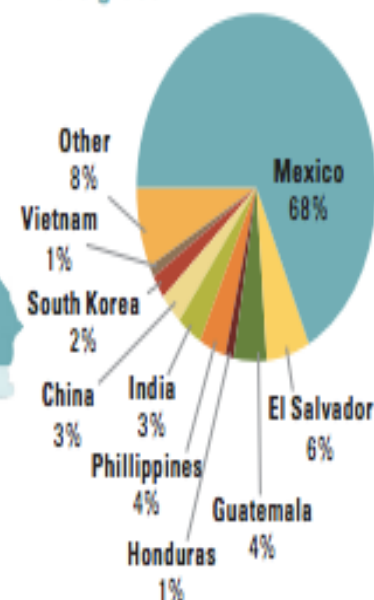


K-12 students in California have undocumented parents⁴

California's undocumented residents live across the state¹



California's undocumented immigrants hail from across the globe⁶



EDU120; C. Beno, UC Davis

Issues Undocumented Students Face

- ➡ **Less parental participation** in school by caregivers fearful of revealing immigration status or confused about the education system.
- ➡ **Lack of family access to social services**, such as food assistance or health care.

Issues Undocumented Students Face

- ➡ **Fear of reporting crimes** to law enforcement.
- ➡ Needing to **enter the workforce at a young age** to support their families, which impacts their ability to focus on and stay in school and means they are relegated to “under-the-table” work without employment protections.

Issues Undocumented Students Face

- ➡ **Lack of access to federal financial aid**, making college less attainable.
- ➡ **State-level financial aid is available in CA** due to the CA DREAM Act, passed in 2011, but many students do not apply, fearful of the repercussions of revealing personal information.

EDU120; C. Beno, UC Davis

Source: The Education Trust-West

POLICIES AFFECTING IMMIGRANT STUDENTS

FEDERAL

PLYLER V. DOE

PLYLER V. DOE: a Supreme Court decision that guarantees undocumented students free access to K-12 education.

DACA

"DEFERRED ACTION FOR CHILDHOOD ARRIVALS" (DACA): an initiative created by President Obama in 2012 through executive action provides two-year deportation relief and work eligibility for qualifying youth who came to the U.S. as children.

DREAM ACT

The **DEVELOPMENT, RELIEF, AND EDUCATION FOR ALIEN MINORS (DREAM) ACT:** a U.S. legislative proposal that would provide a path to legal status for qualifying high school graduates who attend college or serve in the military. First introduced in 2001, it never passed despite multiple legislative attempts.

CALIFORNIA

AB 540

AB 540 (2001) allows qualifying nonresident students to pay in-state tuition at public universities. California was the first state to pass such legislation.

CA DREAM ACT

The **CALIFORNIA DREAM ACT (2011)** allows AB 540 students to also apply for state-funded financial aid, known as Cal Grants, and non-state funded scholarships.

Underground Undergrads –

UCLA Undocumented Immigrant Students Speak Out

- ▶ Assembly Bill (AB) 540, passed in 2001 in CA, **allows out-of-state and undocumented students** who meet certain criteria to be **exempt from paying non-resident tuition** at all public colleges and universities in CA.

Underground Undergrads –

UCLA Undocumented Immigrant Students Speak Out

- Prior to AB 540, undocumented high school students were likely to remain in the state, but many couldn't afford non-resident tuition.
 - The Legislature didn't want to deny these **academically eligible students higher education**.
 - Increasing access to CA's colleges and universities should in turn increase the State's collective productivity and stimulate economic growth.

Underground Undergrads –

UCLA Undocumented Immigrant Students Speak Out

- ➡ AB 540 doesn't allow access to State or Federal financial aid or provide a venue for undocumented students to adjust their immigration status.

Underground Undergrads –

UCLA Undocumented Immigrant Students Speak Out

- State-level financial aid is available in CA due to the CA DREAM Act, passed in 2011, but **many students do not apply**, fearful of the repercussions of revealing personal information.
- The information given to Universities by undocumented students is confidential and protected under the Family Education Rights and Privacy Act (FERPA), which protects the privacy of student's educational records.
- U.S. Immigration and Customs Enforcement (ICE) cannot access a student's educational records.

Underground Undergrads –

UCLA Undocumented Immigrant Students Speak Out

- This article is an **ethnography based on real-life testimonials, interviews, and family histories of undocumented students.**
- The goal of these students writers at UCLA was to make people aware of the issues undocumented college students face; and put comprehensive immigration reform and the DREAM Act on the forefront of the discussion in Congress.

Improving Access to Post-secondary Education

➡ **DREAM Act**

- ➡ The Development, Relief, and Education for Alien Minors (DREAM) Act is Federal legislation that was first proposed in Congress in 2001.
- ➡ Would allow undocumented immigrant youth, who were brought to the U.S. as children by their parents, to attend post-secondary institutions or join the military services and subsequently become U.S. citizens.

DREAM Act

- To qualify, youth would need to be **enrolled in a 2-year or 4-year college or in trade school, have a high school diploma or GED credential, and have been in the U.S. continuously for at least 5 years.**
- Participating youth would have **6 years to apply to be a Legal Permanent Resident (LPR) and then they could apply for U.S. citizenship** if they maintain “good moral character” and finish at least 2 years of college, trade school or military service.

DREAM Act

- Over the last 20 years, at least **11 versions of the Dream Act have been introduced in Congress**. While the various versions of the bill have contained some key differences, they all would have provided a pathway to legal status for undocumented people who came to this country as children.
- **Despite bipartisan support for each iteration of the bill, none have become law.**
- To date, the 2010 bill came closest to full passage when it passed the House but fell just five votes short of the 60 needed to proceed in the Senate.

DREAM Act of 2023

- The Dream Act of 2023 was introduced in the Senate on February 9, 2023.
- This bipartisan bill would provide “Dreamers” – young undocumented immigrants who were brought to the United States as children and have lived in the U.S. for most of their lives – with protection from deportation and an opportunity to obtain legal status if they meet certain requirements.
- The Dream Act of 2023 would allow approximately 1.9 million eligible Dreamers brought to America as children, including the roughly 600,000 current DACA recipients, to receive permanent protections to live and work in the U.S.

DREAM Act of 2023

- To qualify for conditional permanent resident status, young undocumented immigrants would need to meet the following requirements:
 - Demonstrate that they were brought to the U.S. at age 17 or younger and have lived continuously in the U.S. for at least four years prior to the bill's enactment;
 - Pass a government background check, demonstrate “good moral character” with no felony or multiple misdemeanor convictions, submit biometric and biographic data, and undergo a biometric and medical exam;

DREAM Act of 2023

- To qualify for conditional permanent resident status, young undocumented immigrants would need to meet the following requirements:
 - Demonstrate they have been admitted to a college or university, have earned a high school diploma, or are in the process of earning a high school diploma or an equivalent; and
 - Pay an application fee.

DREAM Act vs. DACA

- The DACA program and the DREAM Act have similar goals of protecting Dreamers but they differ in the extent of protection they can provide.
- The goal of the DREAM Act is to give Dreamers permanent legal status and a pathway to citizenship.
- **DACA only offers "deferred action"** that recipients have to renew every two years.

DACA

- ➡ The Deferred Action for Childhood Arrivals (DACA) program allows individuals who were brought to the U.S. as children to apply for **“deferred action” on immigration enforcement, and to obtain work permits** for a renewable two-year period.

DACA

➡ Goals:

- ➡ **Shift immigration enforcement** away from “low priority” individuals with good behavior.
- ➡ **Allow Congress to pass the DREAM Act**, which would provide a pathway to permanent residency for unauthorized immigrants brought to the U.S. as children.

The End of DACA

- On September 5, 2017, the Trump Administration announced their intent to phase out the DACA program over the next 6 months.
- **In June 2020, the Supreme Court ruled that the Trump Administration used improper procedure in ending the DACA program, providing some relief for Dreamers.**
- But the Court did not say that the government could never end DACA. Nor did the Court rule on whether DACA is legally valid.

The End of DACA –

What might it mean?

- ➡ The end of DACA does **NOT** affect access to public education for children in K-12 grades.
- ➡ All kids, irrespective of their immigration status, have a right to public elementary and secondary education.
- ➡ In CA there is a compulsory attendance law for kids between the ages of 6 and 18.

The End of DACA – What does it mean?

- ➡ The end of DACA does **NOT** change the ability of undocumented students to attend public colleges in CA.



Over 75,000 undocumented students are enrolled in California public colleges and universities.

27,000

undocumented students graduate from
California high schools each year

Nearly
10%

of undocumented students pursue higher
education, and far fewer successfully
graduate with a degree

15%

of over 50,000 CA DREAM Act applicants were
awarded a Cal Grant award

*These data points are estimates provided by California higher education systems.

California Undocumented Higher Education Coalition

- ▶ California is home to more than **two million undocumented immigrants** and conservative estimates find that **approximately 75,000 undocumented students are enrolled in California's public and independent colleges and universities.**
- ▶ Losing, or even underutilizing, these talented students **pose a threat to our state's workforce and economy**, as California needs an additional 1.65 million college-educated workers by 2030.
- ▶ Undocumented students are raised in our communities, attend our public schools, and abide by our laws. **Supporting undocumented students in achieving their college dreams supports both California's economy and its values.**

California Undocumented Higher Education Coalition

- The California Undocumented Higher Education Coalition was established as a **response to the national uncertainty and aversive climate facing undocumented students.**
- The coalition, composed of educators, civil rights, business, philanthropy, students, and community-based groups, works to **strengthen California's workforce and economy by ensuring college access and success for undocumented youth in the state.**



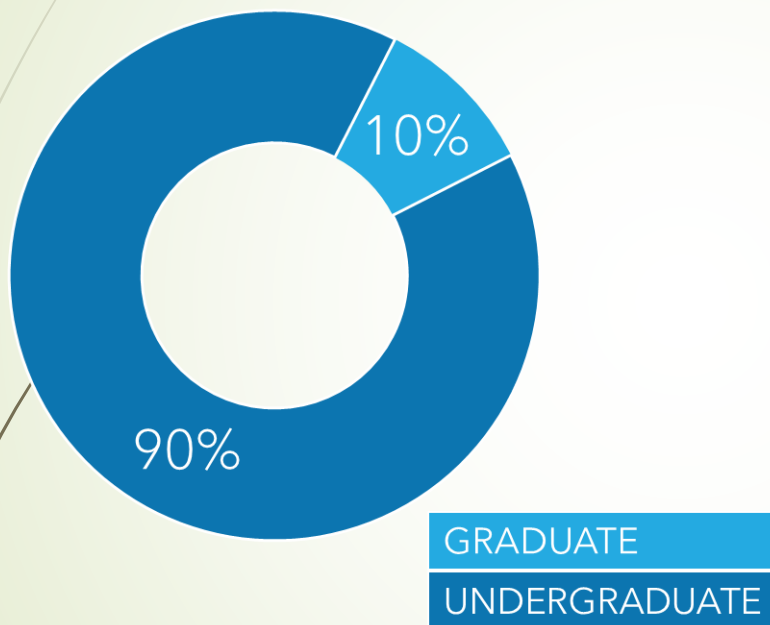
CALIFORNIA
STUDENT AID
COMMISSION

Status of Financial Aid for California Higher Education Undocumented Students

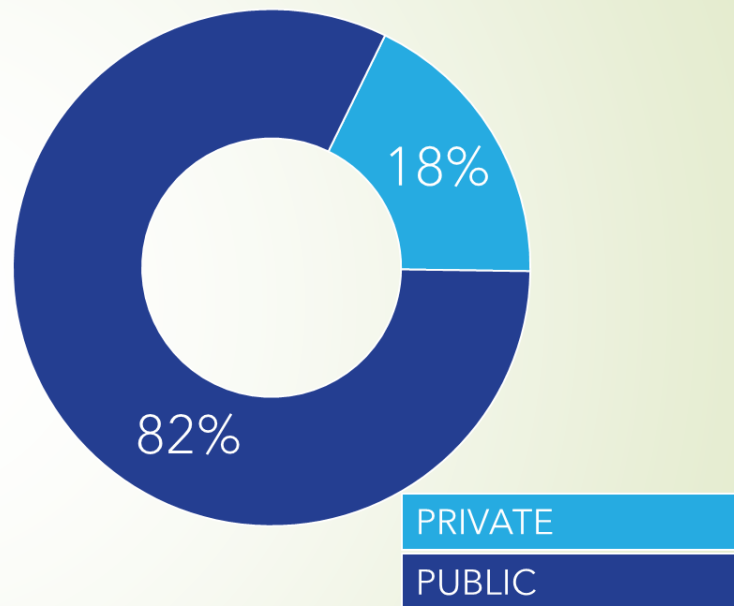


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Education Level



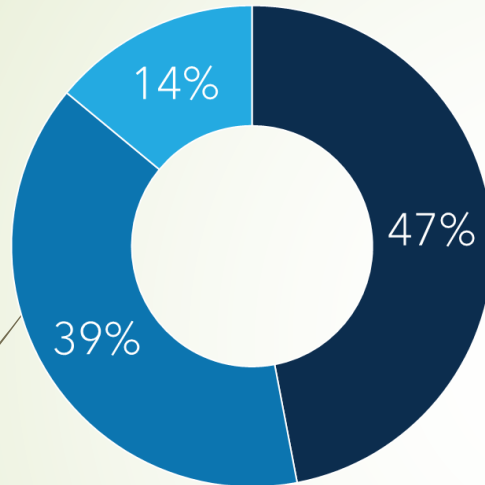
Enrollment





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COMMISSION

Age of Arrival

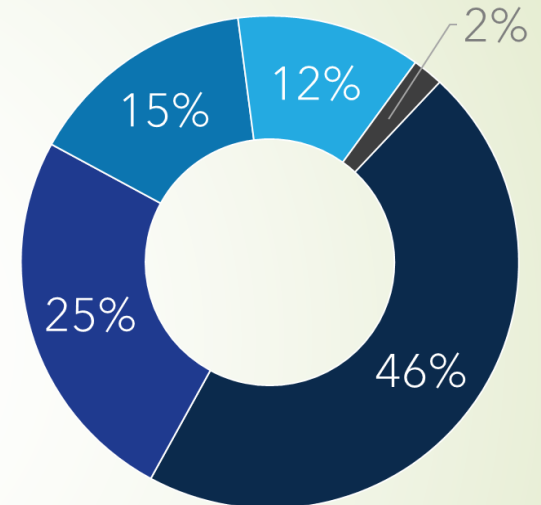


CHILD (0-12)

ADOLESCENTS (13-21)

ADULTS (22+)

Race



LATINX

BLACK

AAPI

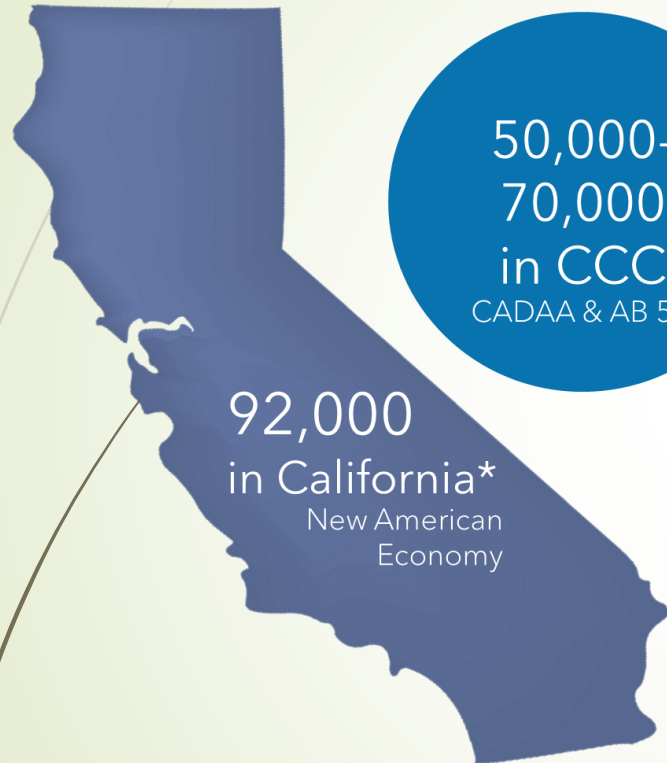
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OTHER (BI OR MIXED)

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CALIFORNIA
STUDENT AID
COMMISSION



50,000-
70,000
in CCC
CADAA & AB 540

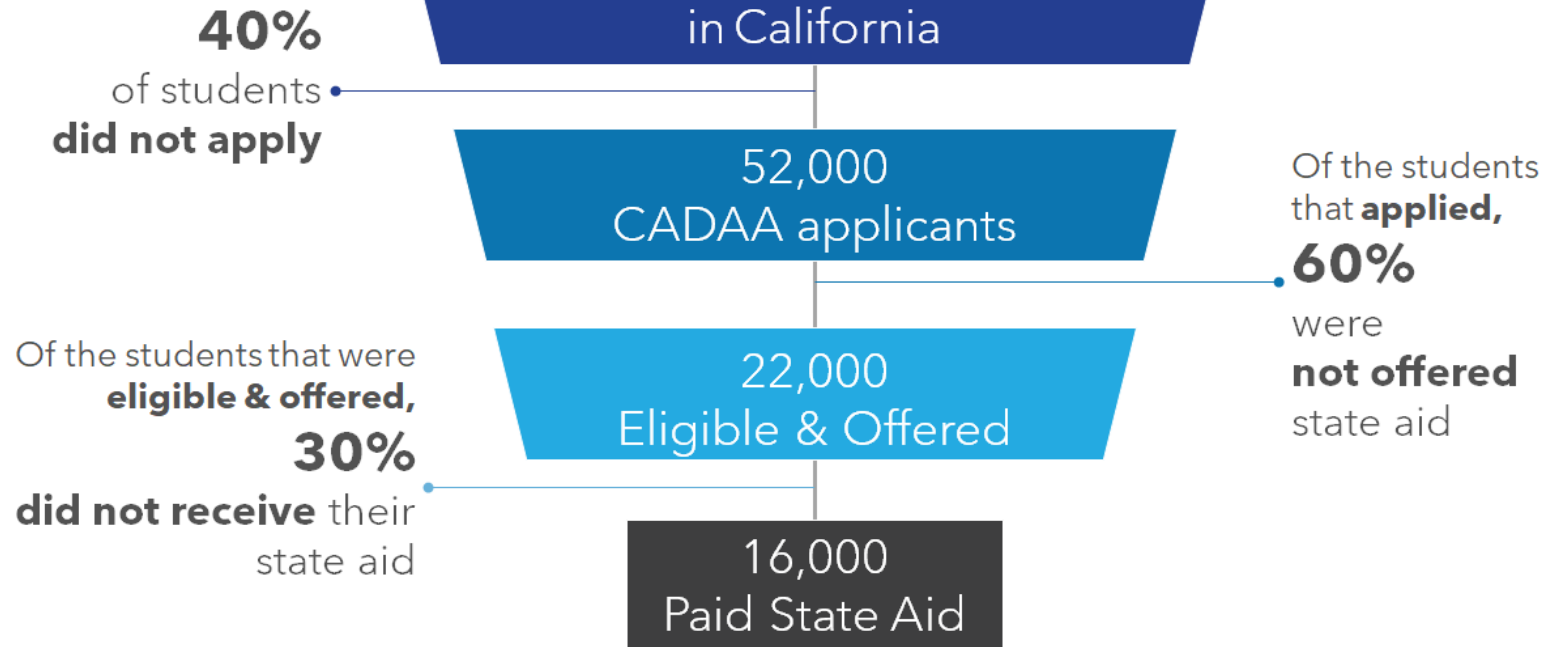
9,100
in CSU
AB 540

4,600
in UC
CADAA

1,100
in AICCU
CADAA



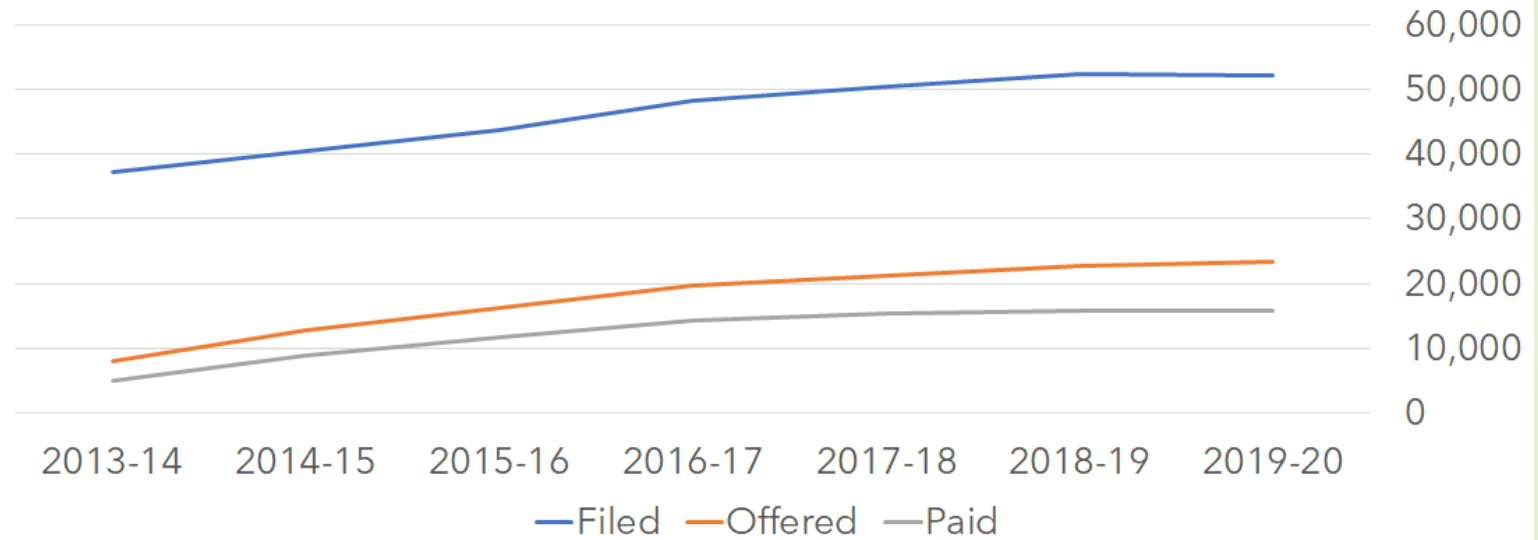
CALIFORNIA
STUDENT AID
COMMISSION





CALIFORNIA
STUDENT AID
COMMISSION

California Dream Act Application



CALIFORNIA DREAM ACT MAP 2020-21: STEPS TO SUCCESSFULLY APPLY

PHASE 1 October 1 - March 2

Student enters or creates a user name and password at www.caldreamact.org WRITE THEM DOWN and SAVE this information!

Student completes 2020-21 California Dream Application online at www.caldreamact.org Make sure to select the correct aid year.

Student must include:

- » School code for ALL schools they are considering
- » Parental information
- » Income (taxed & untaxed)
- » Assets & Investments
- » Household size

NO Social Security Number is REQUIRED

Parent information is **REQUIRED** unless:

- » student is 24 years old or
- » was born before 1/1/97
- » is married, has children, dependents other than children, is an orphan, ward of the court, veteran or on active duty or in graduate school

Student submits their DREAM application by **3/2/20** AND immediately checks the app status on the confirmation page tab.

Parent obtains a personal identification number (P.I.N.) and signs the application (the P.I.N. is unique to each student).

California Student Aid Commission (CSAC):

1. Calculates the Estimated Family Contribution (EFC)
2. Sends DREAM App to all schools listed.
3. Selects specific students for income verification.
4. Identifies any errors or missing information on the DREAM App

CSAC contacts students who need to resolve any missing or erroneous information.

Student must:

1. Correct DREAM App & provide necessary information
2. Re-sign & resubmit DREAM App, including the parent signature, if required.

PHASE 3 March - May

School will receive all DREAM applications that are complete, with a valid EFC.

WARNING Incomplete DREAM App
School contacts students under 24 that did not include parent information. Documentation is required before financial aid can be awarded.

School informs students who are required to submit income verification documents.

Student & Family, if chosen, must complete and submit (a) an income verification form AND (b) 2018 Tax Return TRANSCRIPT(s), if required to file taxes per the IRS tax code.

School sends a financial aid offer to students who met the income guidelines, priority deadline, AB 540/ SB 68 status, and all other eligibility the CA College Promise Grant, State University Grant (CSU), the University Grant (UC), Cal Grants, and/or other institutional aid (if available).

CA College Promise Grant

Students at California Community Colleges may be eligible for the CA College Promise Grant switch without filing the CA Dream Application.

You're ready to start Phase 4!

PHASE 2 October 1 - March 2

Student applies for the Cal Grant www.csac.ca.gov

1. Submit Dream App
2. Verify your high school or community college sent your GPA (electronically)
3. If school did not send GPA, student prints out Non-SSN GPA verification form, has school fill it out, then student mails form to CSAC by **3/2/20** and request proof of mailing from US Postal Service

Student creates account on [webgrants4students on https://mygrantinfo.csac.ca.gov/](https://mygrantinfo.csac.ca.gov/)

Student checks status of GPA submission, Cal Grant & Middle Class Scholarship (MCS)

Student ensures the proper school is listed and all holds are cleared, including confirmation of CA High School graduation or GED

School verifies student meets ALL Cal Grant eligibility: income, assets, financial need, AB 540/ SB 68 status, entitlement & class level. MCS eligibility also verified.

PHASE 4 May - September

Student logs onto student portal at each school to review and accept each financial aid offer. Follows up with CSAC, if necessary.

Student calculates each college's costs and develops a per semester/quarter and per year budget, including any scholarships.

Student accepts financial aid, informs school of any pending scholarships, and confirms tuition is deferred, so classes will not be dropped.

School confirms residency and AB 540/ SB 68 eligibility after affidavit and transcripts are received

Students who are male and over 18 years old must show their proof of registration for the selective service.

School will send the student:

- a) Available funds after tuition and fees are paid (via direct deposit, check or credit);
- OR
- b) A bill for the balance that is still outstanding.

Student ensures they are enrolled in proper number of units and there are no holds on their financial aid record.

Student checks if there are any scholarship restrictions regarding tuition; financial need; unit requirement; or others, per the organization

School disburses grants and/or scholarships to pay tuition and other outstanding balances.

OPTIMAL TIMELINE

PHASE 1	Apply for Dream Act October 1 - March 2
PHASE 2	Apply for Cal Grant October 1 - March 2
PHASE 3	Claim your financial aid March - May
PHASE 4	Use your financial aid May - September

★ Immigrants Rising supplemental materials available

Policy Considerations



- Address undocumented student eligibility/access barriers in the Cal Grant Modernization proposal.
- Bring together a CADAA workgroup to assess and improve the CADAA.
 - Simplified process
 - Verification
 - AB 540 affidavit integration
 - Leveraging data sources that can inform policy and outreach
- Partnerships with financial aid offices and external stakeholders to promote outreach and awareness of financial aid opportunities.
- Information campaign to combat misinformation, fear, and unawareness for students and families.
- Identify other financial resources to make up for FAFSA ineligibility.

Revisiting Messages...



Understanding “The Message”

- What **messages** does an optional Latino graduation ceremony send to a student/family?
 - **Propositional** (the basic information in the message)
 - How was the Latinx graduation ceremony different?
 - **Relational** (the status/stature of the deliverer and receiver of the message)
 - Who holds the power?
 - What influence can a student/family have?
 - **Attitudinal** (the feelings or attitude that a message conveys)
 - What might a student/family feel about their place at their school after attending an optional Latinx graduation ceremony?